

IN THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present

Justice Yahya Afridi, CJ
Justice Muhammad Ali Mazhar
Justice Musarrat Hilali

Civil Petitions No.1966 & 2042 to 2059 of 2025

(On appeal from an order dated 24.04.2025, passed by Khyber Pakhtunkhwa Service Tribunal, Peshawar in Review Petition No.1571/2024 moved in Service Appeal No.730/2024 and the orders dated 12.03.2025 passed in Review Petitions No.83/2025 and other Review petitions filed by the petitioners in Service Appeal 25/2023 and other connected appeals)

Mst. Zubaida Khatoon	(In CP.1966/2025)
Engr. Faisal Pervez	(In CP.2042/2025)
Engr. Salman Ahmed	(In CP.2043/2025)
Engr. Muhammad Wajaht Ali Khan	(In CP.2044/2025)
Engr. Naveed Ullah	(In CP.2045/2025)
Engr. Riaz ud Din	(In CP.2046/2025)
Engr. Noor Yaseen	(In CP.2047/2025)
Engr. Manzoor Elahi	(In CP.2048/2025)
Engr. Zeeshan Ullah	(In CP.2049/2025)
Engr. Amjad Ali	(In CP.2050/2025)
Engr. Sadiq Ali	(In CP.2051/2025)
Engr. Muhammad Sohail Khan	(In CP.2052/2025)
Engr. Aiman Afridi	(In CP.2053/2025)
Engr. Umar Siddique	(In CP.2054/2025)
Engr. Saif ur Rehman	(In CP.2055/2025)
Engr. Farhan Alam	(In CP.2056/2025)
Engr. Muhammad Mustajab Khan	(In CP.2057/2025)
Engr. Faisal Pervez	(In CP.2058/2025)
Engr. Zeeshan Ullah	(In CP.2059/2025)

Versus

The Secretary (E&SE) Department Khyber Pakhtunkhwa Peshawar and others	(In CP.1966/2025)
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Government of Khyber Pakhtunkhwa through Chief Secretary at Peshawar and others	(In CP.2042-2059/2025)
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For the Petitioner(s):	Mr. Javed Iqbal Gulbela, ASC (Via video link Peshawar)
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For the Respondents:	Mr. Shah Faisal Ilyas, Addl.A.G.KPK Dr. Hayat Khan, Dy. Director E&SE Department.
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Date of hearing: 11.11.2025

Judgment

Muhammad Ali Mazhar, J: The aforesaid Civil Petitions for leave to appeal are directed against an Order dated 24.04.2025, passed by Khyber Pakhtunkhwa Service Tribunal, Peshawar (**Tribunal**) in Review Petition No.1571/2024 moved in Service Appeal No.730/2024 and the orders dated 12.03.2025 passed in Review Petitions No.83/2025 and other Review petitions filed by the petitioners in Service Appeal 25/2023 and connected appeals.

2. The short and snappy facts of the case are as under:-

I) Civil Petition No. 1966/2025

The petitioner filed Service Appeal No.730/2024 wherein she challenged the Notification dated 16.01.2024 whereby the promotion granted to her to the post of Secondary School Teacher (SST) BPS-16 pursuant to the Notification dated 16.10.2017 was withdrawn. The learned Tribunal dismissed the Service Appeal on 12.11.2024. The petitioner filed Review Petition No.1571/2024 wherein certain errors floating on the surface of the record were highlighted with reference to the Peshawar High Court Judgment dated 11.09.2017 in W.P.No.2766-P/2017 and the petitioner alleged that according to the ratio of the Peshawar High Court judgment, degrees issued by Al-Khair University during the period commencing from 30.04.2009 to 16.10.2011, shall be considered valid. This review was taken up for hearing on 24.04.2025 but it was dismissed by the learned Tribunal with the observations that the power of review introduced through the amendment by inserting Section 7-A in the Khyber Pakhtunkhwa Service Tribunal Act, 1974 is ambiguous as no power has been conferred for review. Therefore, the learned Tribunal by means of impugned order returned the memo of Original Review Petition to the petitioner along with its annexures.

II. CP.No.2042 to 2059 of 2025

The finer points of the these CPLA describes that the petitioners by dint of individual service appeals challenged the Notification dated 26.08.2022 issued for antedated promotion of the private respondents from the date of Meeting of Departmental Promotion Committee dated 19.07.2022. They further prayed that all the benefits granted on the basis of antedated promotion may be withdrawn from incumbents. The Service Appeals No.06 to 26 of 2023 were dismissed by the Service Tribunal vide consolidated judgment dated 04.11.2024. The petitioners filed Review Petitions before the Tribunal with certain grounds including that the Departmental Promotion Committee forwarded the recommendations for antedated promotions without providing any opportunity of hearing and also disturbed the seniority list. All the Review Petitions were fixed for hearing before the learned Tribunal on 12.03.2025 which were dismissed by a common impugned Order in all service appeals due to lack of jurisdiction and with the same observations that the power of review is ambiguous in the Khyber Pakhtunkhwa Service Tribunals Act 1974 and as a consequence, all original Review Petitions were returned to the petitioners.

3. The learned counsel for the petitioners argued that instead of deciding the review petitions, the learned Tribunal simply returned the review petitions. He further argued that despite alleged ambiguity, the Tribunal could have decided the review petitions for rectifying the errors floating on the surface of record. It was further contended that the simple return of review petitions seriously prejudiced and deprived the petitioners from their lawful service benefits.

4. The learned Addl.A.G. with the assistance of Dr. Hayat Khan, Dy. Director E&SE Department argued that the learned Tribunal rightly returned the memo of Review Petitions as according to him also, there is some ambiguity in the language of the provision conferring the power of review of orders and judgment of the Tribunal which need to be considered and rectified by reading it down and/or some legislative amendment is needed and the matter may be referred to

the government for consideration of this opacity to harmonize the provision as incorporated for the invocation of review jurisdiction in Federal Service Tribunal Act, 1973.

5. Heard the arguments. In order to resolve the controversy reminiscently, it is somewhat imperative to first comprehend the right of appeal conferred to a civil servant under Section 4 of the Khyber Pakhtunkhwa Service Tribunals Act 1974, (**Act of 1974**) which is reproduced as under:-

“4. Any civil servant aggrieved by any final order, whether original or appellate made by a departmental authority in respect of any of the terms and conditions of his service may, within thirty days of the communication of such order to him or within six months of the establishment of the appropriate Tribunal, whichever is later, prefer an appeal to the Tribunal having jurisdiction in the matter:

Provided that:

(a) Where an appeal, review or representation to a departmental authority is provided under the Khyber Pakhtunkhwa Civil Servants Act, 1973, or any rules against any such order, no appeal shall lie to a Tribunal unless the aggrieved civil servant has preferred an appeal or application for review or representation to such departmental authority and a period of ninety days has elapsed from the date on which such appeal, application or representation was preferred;

(b) no appeal shall lie to a Tribunal against an order or decision of a departmental authority determining-

(i) the fitness or otherwise of a person to be appointed to or hold a particular post or to be promoted to a higher post or grade or

(ii) the quantum of departmental punishment or penalty imposed on a civil servant as a result of a departmental inquiry, except where the penalty imposed is dismissal from service, removal from service or compulsory retirement; and

(iii) no appeal shall lie to a Tribunal against an order or decision of a departmental authority made at any time before the 1st July, 1969.

Explanation.—In this section, "departmental authority" means any authority other than a Tribunal which is competent to make an order in respect of any of the terms and conditions of service of civil servants."

6. In the beginning when the Act of 1974 was promulgated, no provision conferring the power of review was incorporated in the aforesaid Act but vide Khyber Pakhtunkhwa Act No. XII of 2024, Section 7A was inserted on 05.11.2024, which is for the ease of reference reproduced as under:-

7A. (1) Any party, considering himself aggrieved by judgment or order of the Tribunal, from which an appeal is allowed under this Act, but no such appeal has been preferred, may file a review petition to the Tribunal, within thirty days of the judgment or order, so passed, on the following grounds:

(a) discovery of new and important matter or evidence, which, after exercise of due diligence, was not within the knowledge of the petitioner or could not be produced by him at the time, when the order was passed;

(b) on account of some mistake or error, apparent on the face of record; or

(c) for any other sufficient cause.

(2) The Tribunal shall decide the review petition within sixty days.

(3) The Tribunal, while disposing of the review petition, may confirm, set aside, vary or modify its judgment or order.

7. The matter of grave concern in the case in hand is that in the year 2024, a provision for review by means of Section 7A was inserted but the language of the provision is quite imprecise and nebulous. Had the provision been moulded or conscripted and composed in the fashion that “Any party, considering himself aggrieved by judgment or order of the Tribunal may file a review petition to the Tribunal”, then no severance or redundancy could be attributed to the workability and effective operation of a beneficial provision creating a right to apply for review on discovery of new and important matter or evidence, which, after exercise of due diligence, was not within the knowledge of the petitioner or could not be produced by him at the time, when the order was passed or on account of some mistake or error, apparent on the face of record or for any other sufficient cause but a set of word added in the provision as precondition or prequalification such as “from which an appeal is allowed under this Act, but no such appeal has been preferred” has in fact made the aforesaid provision integrated for invoking review jurisdiction against any order or judgments of Tribunal redundant and unserviceable.

8. The pith and substance of Section 4 of the Act of 1974 exemplifies that any civil servant aggrieved by any final order, whether original or appellate made by a departmental

authority may, within thirty days of the communication of such order, prefer an appeal to the Tribunal and if an appeal, review or representation to a departmental authority is provided, no appeal shall lie to the Tribunal unless the aggrieved civil servant has preferred an appeal or application to such departmental authority and a period of ninety days has elapsed from the date such appeal or representation. So in our considered view, only one right of appeal is provided to an aggrieved civil servant which is accentuated under Section 4 of the Act of 1974 and if the provision of review is read along with the set of words *“from which an appeal is allowed under this Act, but no such appeal has been preferred”* then no review application is maintainable or entertainable because no further right of appeal is provided under the Act of 1974 which was available but since no such appeal was preferred, therefore, the applicant is deemed to be allowed to file review application / petition before the Service Tribunal. By the looks of it, the observation of the learned Tribunal seems to be correct that the provision added for applying review of order and judgments of the Service Tribunal is ambiguous. In the present appearance of this provision, the learned Tribunal had no other option but to stay their hands due to lack of jurisdiction in the constrained circumstances thus the learned Tribunal rightly returned the memo of review petitions without touching the merits of the case.

9. At this juncture, we cannot lost sight of the provisions assimilated under the Federal and other Provincial Service Tribunal Acts for applying review of orders/judgments, which are reproduced as under:-

1. Service Tribunals Act 1973 (Federal Law)

4A. Review.– (1) A tribunal shall have the power to review its final order on a review petition filed by an aggrieved party within thirty days of the order on the following grounds, namely:–

(i) discovery of new and important matter or evidence which, after exercise of due diligence, was not within knowledge of the petitioner or could not be produced by him at the time when the order was passed;

(ii) on account of some mistake or error apparent on the face of record; of

(iii) for any other sufficient cause.”

(2) The Tribunal shall decide the review petition within thirty days.

(3) The Tribunal may confirm, set aside, vary or modify the judgement or order under review.

(Review provision added by Act IV of 2014)

2. Balochistan Service Tribunals Act 1974

5-A: Review. (1) The Tribunal shall have the power to review its final order/judgment on a review petition filed by an aggrieved party within thirty days of the order/judgment on the following grounds, namely:—

(a) Discovery of new and important mater or evidence which, after exercise of due diligence, was not within the knowledge of the petitioner or could not be produced by him at the time when the order/judgment was passed.

(b) On account of some mistake or error apparent on the face of record; or

(c) For any other sufficient cause.

(2) The Tribunal shall decide the review petition within thirty days.

(3) The Tribunal may confirm, set aside, vary, modify the judgement or order under review.

(New Sections 5-A added by Act VI of 2021)

3. Punjab Service Tribunals Act 1974

No power of review conferred to the Service Tribunal for reviewing its own orders and judgments.

4. Sindh Service Tribunals Act 1973

No power of review conferred to the Service Tribunal for reviewing its own orders and judgments.

10. The raison d'être of reproducing the relevant excerpts of provisions conferring the powers of review of orders and judgments by the Service Tribunal at least in Federal Service Tribunal and Baluchistan Service Tribunal Acts is to demonstrate that the review provisions in both laws are straightforward and unambiguous without any rider or precondition. It sounds to us as if the provision of review with the precondition “from which an appeal is allowed, but from which no appeal has been preferred” was brought in the Act of 1974 (KPK Act) along the lines of Order XLVII of the Code of

Civil Procedure, 1908, (**CPC**) wherein under clause (a) it is provided that any person considering himself aggrieved by a decree or order from which an appeal is allowed, but from which no appeal has been preferred. The provision contained in the CPC cannot be considered or commensurate to the provision of Review under the Act of 1974 which does not provide any further right of appeal except one which is provided under Section 4, while in CPC, remedies of appeals, revision and review are already provided which can be availed by an aggrieved person in accordance with the parameters calibrated under the law and instead of availing the right of appeal, if review petition is filed then obviously, the court cannot non-suit such applicant but here against the order or judgment of Service Tribunal, no further right of appeal is provided in the Act of 1974 therefore, adding together the words “under this Act” is impracticable and superfluous. It is well-known that after rendering the order/judgment by the Service Tribunal (in both Federal and Provincial laws), the further provision of appeal as a last resort is provided under Article 212 of Constitution of Islamic Republic of Pakistan 1973 with the leave of this Court if the case involves a substantial question of law of public importance.

11. The concept of purposive interpretation places an obligation upon the Courts to interpret the statute or the Constitution keeping in mind the purposefulness for which the provision in question was legislated with a dynamic and result oriented approach rather than construing it in a restrictive or stringent sense. In fact, the rule of purposive interpretation was originated in the 16th Century in keeping with the decision in Heydon's Case ((**1584**) **76 ER 637**) which laid down that if the literal interpretation of any provision of law is not acceptable or leads to absurdity, then such provision may be interpreted with the object and purpose which the legislature had in mind while enacting the law. According to Maxwell on the Interpretation of Statutes (12th ed.), at page 228, where the language of a statute, in its ordinary meaning and grammatical construction, leads to a manifest contradiction of the apparent purpose of the enactment, or to some inconvenience or absurdity, hardship or injustice, which can hardly have been intended, a construction may

be put upon it which modifies the meaning of the words, and even the structure of the sentence. The hallmark of a good law is that it ensures the provision of a proper remedy and does not leave litigants stranded with no recourse. Though the "doctrine of legislative misfire" is not an established doctrine but the term "misfire" in a legal context may refer to a condition where a piece of legislation fails to have an intended effect or goes wrong or it has some drafting error/unintended loophole and or omission which can be conversed by the Court. The doctrine of purposive interpretation permits the Courts to line up the statutory interpretation with the intent of the lawmakers by classifying, remedying and suppress the mischief and advance the remedy in order to avoid ambiguity or inconsistent interpretation. The mischief rule focused on remedying a past defect while the tool of purposive interpretation looks forward to the purpose or object the legislature sought to achieve. In K.P. Varghese v. ITO (AIR 1981 SC 1922), the Court articulated this modern purposive approach, holding that interpretation must align with the intent, object, and spirit of the legislation, rather than its narrow literal meaning. When a court reads down a statute, purposive interpretation serves as the guiding principle: it allows judges to identify the statute's legitimate objective and limit its scope to what is necessary for achieving that purpose. It transforms the act of interpretation into one of constitutional preservation, ensuring that laws remain faithful to their objectives while compatible with fundamental rights. In the case of Venkataramana Devaru v. State of Mysore (AIR 1958 SC 255), the Court held the harmonious construction enables the court to preserve both the impugned provision and the broader statutory or constitutional framework. It reconciles the tension between legislative objectives and constitutional guarantees, ensuring that neither is sacrificed in interpretation. Whereas Bennion on Statutory Interpretation (4th ed.), at page 810, describes that a purposive construction of an enactment is one which gives effect to the legislative purpose by: (a) following the literal meaning of the enactment where that meaning is in accordance with the legislative purpose or (b) applying a strained meaning where the literal meaning is not in accordance with the legislative purpose. The

techniques of construction known as reading down and severance are corollaries of this presumption.

12. The doctrine of reading down is an articulate judicious device to interpret the law consistent with constitutional provisions when any provision of any statute or the statute itself infringe any right or if leads to an unjustified aftermaths or disbalancing the legislative intent then it can be read down to make it consistent with constitutional or legal principles for an achievable objective rather than declaring it null and void. Lord Reid in Federal Steam Navigation Co. v. Department of Trade & Industry, [(1974) 2 All E.R. 97 at p. 100]. (as also extracted by Cross Statutory Interpretation, Butterworths' Edition, 1976 at page 43), held that "the judge may read in words which he considers to be necessarily implied by words which are already in the statute and he has a limited power to add to, alter or ignore statutory words in order to prevent a provision from being unintelligible, absurd or totally unreasonable, unworkable, or totally irreconcilable with the rest of the statute." Ref: Raja Amer Khan v. Federation of Pakistan and others (2024 SCP 4 = PLJ 2024 SC 114)

13. In the larger interest of Civil Servants of the province of Khyber Pakhtunkhwa and in order to ensure the fundamental right to fair trial and due process enshrined and safeguarded under Article 10A of the Constitution of Islamic Republic of Pakistan 1973, the dominant objective of beneficial provision/remedy of review incorporated under Section 7A of Act of 1974 to be invoked against the order and judgment can only be achieved at best if it is read down commensurate and complement to the provision of review provided under Section 4A of the Service Tribunals Act 1973 (**Federal Law**) which elucidates that "A tribunal shall have the power to review its final order on a review petition filed by an aggrieved party within thirty days of the order", which the right of filing review petition/application is without any rider as contained in the present form of Act of 1974. So far as grounds for applying review of order and judgment are concerned, those are already assimilated in the Section 7A of the Act of 1974 to invoke.

14. As a result of the above discussion, the aforesaid civil petitions are converted into appeals and disposed of in the following terms:

- 1) The provision of Review contained under Section 7A of Act of 1974 is read down in terms of Paragraph 13 of this Judgment.
- 2) The petitioners may present their Review Petitions afresh that were returned by means of impugned orders within thirty days from the date of this order in the learned Tribunal and the learned Tribunal shall decide all the review petitions on merits after providing opportunity of hearing to the parties.
- 3) Albeit, we have read down the aforesaid provision that must be acted upon but in the fitness of things, we also leave it at the fine sense of judgment of the Government of Khyber Pakhtunkhwa to bring in necessary amendments under Section 7A of Act of 1974 within a reasonable period of time. Notwithstanding, the provision as already read down by us in the paragraph 13 of this judgment will continue; remain in field and binding for compliance and implementation.

Office is directed to transmit copy of this judgment to the Chief Secretary and Secretary, Law, Parliamentary Affairs and Human Rights Department, Government of Khyber Pakhtunkhwa (KPK) as well as the Advocate General, KPK.

Chief Justice

Judge

Judge

Islamabad
11.11.2025
Khalid
Approved for reporting